

Consolidated Contract Summary for:
**Midland -dba- Nvisia LLC - ExA-SOW BlueStar PowerBuilder
Remediation**

Required Contract Details

Supplier Name	MIDLAND BUSINESS SYSTEMS INC
Contract Type	SOW - Statement of Work
Contract Start Date	09/11/2023
Contract End Date	1/31/2024
Optional Extensions Available?	Yes, through the SOW Change Control Process
PSS Category Manager	Nashaat_Hana@bcbsil.com
Division	Commercial and Digital Technology Delivery
Executive Sponsor	Karl Baltes
Contract Owner The HCSC representative who enters into an obligation with another party. This person is accountable for all aspects of the contract. Management of the contract may be delegated.	Karl Baltes
Total Contract Value (TCV)	842,150.00

Brief Description of the Agreement, Scope of Services (3-5 sentences):

This SOW is for the Implementation phase associated with the BlueSTAR modernization effort. At the conclusion of this phase we will have solidified our go-forward architecture, identified our MVP and had a plan pulled together for the initial implementation phase.

TEL’M Terms: Part 1 (HCSC preferred answer: “Yes”)

Provision	Yes or No	If “No”, Please Provide Additional Detail
Does HCSC have Termination for Convenience rights?	Yes	
Is the length of this contract (excluding optional extensions) 3 years or less?	4 months	
Was this contract competitively bid ?	No	Karl Baltes approved on their rates
Was HCSC template language for liability and indemnification accepted by this supplier?	Yes	

Provision	Yes or No	If “No”, Please Provide Additional Detail
Are the HCSC outcomes clearly defined , with fees at-risk?	Section #:9.4	Services Vendor will invoice HCSC per the following payment schedule. The HCSC Contract Manager will monitor and review all invoice requests from Services Vendor and ensure the Services Vendor has completed the required Deliverables before invoice submission.
Are the contract milestones clearly defined , with payment structure aligned to the milestones?	Section #: 8	Deliverable completion in section 8 triggers invoicing in section 9

TEL’M Terms: Part 2 (HCSC preferred answer: “No”)

Provision	Yes or No	If “Yes”, Please Provide Additional Detail
Is HCSC required to exclusively use this supplier for these services?	No	
Is HCSC obligated to minimum spend commitments for these services?	No	

Optional Additional Information:

12-Maurice Smith, President & CEO
(All Contracts >\$20M)

Required Purchasing & External Workforce Services (EWS) Details

Zycus Contract ID#	ZY24513
Contract Type	SOW - Statement of Work
Contract Sub-Type	Statement of Work for HCSC
Contract Start Date	09/11/2023
Contract End Date	1/31/2024
PSS Category Manager	Nashaat Hana
Contract Manager <i>The person(s) responsible for managing the obligations of a contract. This includes deliverables and obligations, service levels, governance meetings and forums.</i>	Brad McCarter
Access to HCSC Buildings Needed?	Yes
Access to HCSC Systems Needed?	Yes

Supplier Contact Name	Mark Daniels
Supplier Phone Number	630.251.4194
Supplier E-mail Address	mdaniels@nvisia.com

Total Contract Value (TCV)	842,150.00
Cost Center(s)	014509
Project Code(s), if applicable	P00028915
Funding Allocation %, if applicable	100% @ 1002261
Division Finance Resource	Jim Klempner and team.

Nashaat Hana

From: Karl Baltes
Sent: Tuesday, September 5, 2023 3:14 PM
To: Nashaat Hana; Brad McCarter
Cc: Ron Warneke
Subject: RE: Pay rate increase approval request for contract # ZY24513

Hi Nashaat

This is approved for **BlueStar related SOWs now and in future years with this niche upgrade**. Scott Morgan and I chatted and need to have conversation with vendor what rates will look like for broader work.

Hoping this exception framework is supported.

Karl Baltes

Vice President – Markets & Operations | Information Technology
Health Care Service Corporation | 300 East Randolph, Chicago, IL 60601
612-741-5302 | Karl_Baltes@bcbsil.com



From: Nashaat Hana <Nashaat_Hana@bcbsil.com>
Sent: Tuesday, September 5, 2023 1:42 PM
To: Karl Baltes <Karl_Baltes@bcbsil.com>
Cc: Ron Warneke <Ronald_Warneke@bcbsil.com>
Subject: Pay rate increase approval request for contract # ZY24513

Hello Karl,

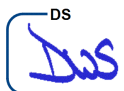
Brad McCarter (the project requester) is requesting your approval for the **nvisia** (the service provider) rates, as they are higher than and beyond the range of our Tier 1&2 suppliers' range.
Please find below the analysis of the rates and attached the SOW

Role/Function	Name	Vendor's Rate/Hour	HCSC Max Rate	# of Hours	Total using suppliers' rates	Total using HCSC rates	percentage increase	Total Savings if using HCSC rates	Comments
Managing Director	Jurek Dzierzanowski	\$0							
Principal	Mark Daniels	\$0							
Delivery Leadership (60%)	Adam Jones	\$235	\$153	370	\$86,950	\$56,610	▲35%	\$30,340	Out of Tier 1/2 ranges
Principal Architect	Rob Miroballi	\$215	\$175	616	\$132,440	\$107,800	▲19%	\$24,640	Out of Tier 1/2 ranges
Fellow Product Management	Ken Lubert	\$190	\$153	616	\$117,040	\$94,248	▲19%	\$22,792	Out of Tier 1/2 ranges
UI/UX Lead	Savina Imrhan	\$160	\$153	616	\$98,560	\$94,248	▲4%	\$4,312	Out of Tier 1/2 ranges
Technical Lead	Alex Pieprzycki	\$165	\$153	616	\$101,640	\$94,248	▲7%	\$7,392	Out of Tier 1/2 ranges
Technical Architect	Dimi Kirilov	\$185	\$145	616	\$113,960	\$89,320	▲22%	\$24,640	Out of Tier 1/2 ranges
Software Engineer	Benjamin Zenunovic	\$150	\$147	616	\$92,400	\$90,552	▲2%	\$1,848	Out of Tier 1/2 ranges
Software Developer	Kerim Kutuk	\$135	\$140	616	\$83,160	\$86,240			Within the range
TOTAL					\$826,150	\$713,266	108%	\$115,964	

Thank you
Nashaat

DS DS DS DS DS








Statement of Work For BlueStar PowerBuilder Remediation

**Health Care Service Corporation,
a Mutual Legal Reserve Company (“HCSC”)
by and through its Operating Divisions:**

**Blue Cross and Blue Shield of Illinois,
Blue Cross and Blue Shield of Montana,
Blue Cross and Blue Shield of New Mexico,
Blue Cross and Blue Shield of Oklahoma,
Blue Cross and Blue Shield of Texas**

Contract ID #_ZY24513

EXHIBIT A

This Statement of Work (“SOW”) dated September 11, 2023 is incorporated as an Exhibit A to the **Master Services** Agreement between Midland Business Systems Inc. dba Nvisia LLC (“Services Vendor”) and Health Care Service Corporation, a Mutual Legal Reserve Company (“HCSC”) dated April 14th 2023, (the “Agreement”) and is subject to and governed by the terms and conditions defined therein. In the event that the terms and conditions contained in this SOW are different than, or conflict with, the terms and conditions contained in the Agreement, the terms and conditions contained in the Agreement shall govern, unless this SOW provides explicitly to the contrary.

The information contained in this SOW shall not be disclosed by HCSC or Services Vendor to any third-party and shall not be duplicated, used or disclosed in whole or part for any purpose other than as authorized under the Agreement.

1. INTRODUCTION AND SCOPE

Services Vendor will provide background information regarding the project.

1.1. Scope

This SOW is for the Implementation phase associated with the BlueSTAR modernization effort. At the conclusion of this phase we will have solidified our go-forward architecture, identified our MVP and had a plan pulled together for the initial implementation phase.

1.2. Applicability

. The modernization of Bluestar will enhance both User Experience and add a cost savings to all HCSC lines of business (Group, Government, and/or Retail) and the impact to HCSC's five (5) plans states.

2. ASSUMPTIONS

- HCSC shall provide to Services Vendor timely and reasonable access to HCSC resources including, but not limited to Business, Operational, Program Management Office (PMO) and systems Subject Matter Experts (SMEs) with a thorough understanding of the processes and systems
- Services shall be provided remotely to start and may shift to HCSC's corporate office buildings in Downer's Grove, IL; Naperville, IL; or Richardson, TX and/or Services Vendor offices located in downtown Chicago, IL or Dallas, TX.
- HCSC shall provide Services Vendor with a primary point of contact for issue resolution and sign-offs
- HCSC shall provide Services Vendor with reasonable access to project documentation, repositories, and applications considered in scope for this SOW
- HCSC shall provide Services Vendor with a decision-making authority assigned to the engagement as a customer project manager, typically the same person as the primary point of contact

3. CONFIDENTIAL INFORMATION

PERSONALLY IDENTIFIABLE INFORMATION ("PII") (PII is any personal information that uniquely identifies an individual and includes but is not limited to "PROTECTED HEALTH INFORMATION ("PHI") as defined by HEALTH INSURANCE PORTABILITY AND ACCOUNTABILITY ACT OF 1996 ("HIPAA")).

3.1. Will the Services covered under this SOW result in Services Vendor or a third-party, transmitting, processing or storing HCSC's PII in any manner or a third-party transmitting,

processing or storing HCSC's PII in any manner including, but not limited to, a cloud storage environment? Please indicate the appropriate response.

Yes - ☐

No - ☒

3.2. Will the Services covered under this SOW result in Services Vendor accessing or using HCSC PII? Please indicate the appropriate response.

Yes - ☒

No - ☐

If yes is indicated to either Subsection 3.1 or Subsection 3.2 above, the HCSC PII Minimum Security Requirements ("MSR") Addendum or the most current version of the HCSC template MSR Addendum (Contract ID xxxxx), must be signed between the Parties and is applicable to this SOW; and in accordance with the terms of the MSR, the Services Vendor must obtain and maintain HITRUST certification with the Health Information Trust Alliance ("HITRUST") Common Security Framework ("CSF").

3.3. Will the Services covered under this SOW require access to, use of, and/or storing of PHI as defined by HIPAA? If yes, the Business Associate Agreement ("BAA") (Contract ID# xxxxx), must be signed between the Parties and is applicable to this SOW. Please check the appropriate response.

Yes - ☒

No - ☐

BUSINESS CONFIDENTIAL INFORMATION ("BCI").

3.4. Will the Services covered under this SOW require access to, use of, and/or storing of BCI only?

(Note: If there is access to, use of, and/or storing of both PII and BCI, the PII MSR Addendum or the most current version of the HCSC template MSR must be signed.

Yes - ☒

No - ☐

NOTE: No MSR is required per IS-TPRM, see the email attached to Zycus workspace.

RECORDS IDENTIFICATION & RETENTION.

3.5. Do the Services under this SOW include the Services Vendor and/or its subcontractor(s) retaining Business Records received or created during the performance of Services?

Yes - ☐

No - ☒

Business Record. The term "Business Record" means the final documentation of an HCSC business transaction, decision or activity.

Official Record. The term "Official Record" means the HCSC Business Record that has been designated by HCSC to be retained in accordance with the HCSC retention schedule.

(Note: If yes, the HCSC business area is responsible for working with its HCSC's Records Information Management Liaison ("RIM Liaison") and the Services Vendor to identify, list and complete the table below including whether the Business Record(s) that is/are being retained by Services Vendor is/are designated as the Official Record.)

BUSINESS RECORDS IDENTIFICATION & RETENTION

Record	Record Category Number & Title	Retention Period	Official Record with Vendor (Y or N)

In the event Services Vendor retains Official Records on behalf of HCSC - Absent notice of a legal hold or request by HCSC for such return of Official Records, Services Vendor shall promptly and securely destroy all Official Records upon expiration of the described retention period in the above table.

In the event that Services Vendor retains Business Records that are not designated as Official Records – Business Records retained by Services Vendor that are not designated as Official Records shall be retained by Services Vendor for only the length of time that is minimally necessary for Services Vendor to perform the Services under this SOW and no longer than the HCSC records retention period as described in the above table.

In the event that secure destruction of HCSC Business Records is not feasible - If Services Vendor determines that secure destruction of any of the Business Records listed above is not feasible, Services Vendor shall promptly notify HCSC in writing that destruction is not feasible and the reason(s) why, and continue to secure all HCSC Business Records, including those designated as Official Records, at a level equivalent to that required by the Agreement.

In the event that HCSC sends a written notice to Services Vendor that any data, Business Records, or Official Records are subject to a legal hold, Services Vendor shall preserve, and agrees to not destroy, the foregoing data and Business Records, including those designated as Official Records, until such time as HCSC provides further written direction, even if destruction would otherwise be permitted according to either Parties' records retention policy or under the terms of the Agreement.

3.6 [If the MSA with the Services Vendor is prior to April 2018, then include the following definition of "Person(s)" and a new section to replace Confidential Information:]

A definition of Person(s) is added, and the section describing Confidential Information, is deleted and replaced with the following language, which explicitly takes precedence over conflicting provisions in the Agreement.

Person(s). The term "Person" means any individual, firm, corporation, partnership, limited liability company, trust, joint venture, governmental body, accreditation agency, or other entity.

Confidential Information. During the term of the Agreement, each Party shall protect the other Party's Confidential Information using the same degree of care as it uses to protect

its own Confidential Information of like nature, but no less than a reasonable degree of care and no less than the standard of care required by Applicable Laws for the respective categories of Confidential Information which are disclosed by one Party to another. Additionally:

Both Parties are responsible for (a) communicating all confidentiality obligations related to the Confidential Information to each Person(s) receiving disclosed Confidential Information and/or performing Services under this Agreement and (b) confirming that all such Person(s) will comply with the terms of the Agreement; and

Both Parties will disclose only the minimum necessary Confidential Information to such Person(s), who have a need to know about such Confidential Information, solely for the purpose of permitting them to perform Services on behalf of HCSC, for HCSC business purposes or otherwise fulfilling their obligations under the Agreement.

The Parties acknowledge that Confidential Information is a valuable asset and that if the confidentiality provisions of this Agreement are violated the value of such Confidential Information may be irreparably damaged, to a degree and in an amount, that may not be fully ascertainable. In the event the affected Party is entitled to seek injunctive relief to redress any violation of the Confidentiality provisions and shall provide the other Party with prompt notice of the intended action.

During the term of the Agreement, Services Vendor may retain the minimal amount necessary of HCSC Confidential Information or Work Product (as defined herein) as is necessary for Services Vendor to perform its obligations hereunder. Upon termination of this Agreement for any reason, Services Vendor shall, within thirty (30) days or such other time as agreed upon by the Parties, securely return to HCSC all Official Records, Confidential Information or Work Product acquired or developed by Services Vendor in the performance of the Services in a secure manner that makes it unreadable or indecipherable by any means while in transit. Upon termination of the Agreement and with HCSC approval, Services Vendor may retain copies of the minimum necessary amount of Confidential Information or Work Product as may be required for Services Vendor to comply with Applicable Laws or other obligations. At such time when Services Vendor is no longer required to retain such information under Applicable Laws or other obligations it shall dispose of such Confidential Information or Work Product in a secure manner that makes it unreadable or indecipherable by any means. Services Vendor shall extend the protections of the Agreement to such Confidential Information or Work Product for so long as Services Vendor retains such Confidential Information or Work Product.

This section shall supersede Section **[INSERT ARTICLE/SECTION NUMBER]** of the Agreement as it relates to this SOW.

4. LIST OF APPROVED SUBCONTRACTORS AND SERVICE LOCATIONS

4.1. Approved Use of Subcontractors

Has HCSC approved Services Vendor's use of any subcontractor(s) in performing or supporting Services under this SOW?

Yes - ☐

No - ☒

If "Yes", then complete the following:

Subcontractor(s) name	Location where subcontractors'	Description of responsibilities	Will this subcontractor(s)	What HCSC information will
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responsibilities shall be performed		perform more than 50% of the Services under this SOW?	the subcontractor(s) be accessing?
			BCI - ☐ PHI - ☐ PII (Not inclusive of PHI) - ☐ None - ☐

4.2. Offshore Services

Has HCSC approved of the Services Vendor or its subcontractors performing Services under this SOW or accessing HCSC data from, a non-United States location(s)?

Note: HCSC prohibits the storage or physical transport of the data outside of the United States.

Yes - ☐

No - ☒

If "Yes", then only the following non-United States locations have been approved by HCSC:

[INSERT FULL ADDRESS OF EACH HCSC-APPROVED NON-UNITED STATES LOCATION]

Further, for purposes of the accreditation obligations of HCSC, the approved offshore location(s) will service the following HCSC Plan States:

[INSERT HCSC PLAN STATES]

Any changes to the listed service territory above must receive the prior written approval of HCSC.

4.3. Approved Offshore Services

If HCSC grants approval under this section, Services Vendor will not perform third-party administrator or utilization review services for HCSC. Services Vendor will perform Services pertaining to its responsibilities and obligations under the Agreement using Services Vendor personnel that are physically located at the above approved location(s) outside the United States, provided such Services are performed in accordance with the agreed upon provisions and requirements described in the M S R Addendum between the Parties dated **[INSERT DATE]**.

4.4. [If Offshore Services; Insert only if MSA does not include Indemnification for Violation of Applicable Law]

Additional indemnification obligations of Services Vendor; the paragraph below shall supplement and be in addition to the Indemnification obligations described within the Agreement as it relates to this SOW and to the extent there is direct conflict shall take precedence over any conflicting indemnification provisions in the Agreement.

In addition to Services Vendor's indemnification obligations described in the Agreement, Services Vendor shall defend, indemnify, and hold HCSC and its directors, officers, agents, employees, members, and related entities harmless from any and all Claims arising out of or in connection with Services Vendors and/or its sub-contractors, (i) performance of the Services in a manner that fails to comply with the Foreign Corrupt Practices Act of 1977 and, where applicable, legislation enacted by member States and signatories implementing the OECD

Convention on Combating Bribery of Foreign Public Officials, the UK Bribery Act of 2010, and the India Prevention of Corruption Act, 1988 (collectively, the “Anti-Corruption Laws”) in connection with the provision of Services.

4.5. [If Offshore Services; Insert only if MSA has a Liability Cap]

Exclusion to Liability Cap; which explicitly takes precedence over any conflicting provisions in the Agreement as it relates to this SOW.

The exclusions of certain damages described in Section [INSERT SECTION NUMBER] of the Agreement [and the services vendor cap described in Section [INSERT SECTION NUMBER] of the Agreement will not apply with respect to (i) Services Vendor’s indemnification obligations described in this SOW or Article VIII of the Agreement, or (ii) Services Vendors and/or its sub-contractors violation of Applicable Laws with respect to the Services.

4.6. Offshore Services Prohibited

If HCSC does not grant approval under this section, Services shall not be performed from, or HCSC data cannot be accessed from, a country other than the United States, by Services Vendor or its subcontractors.

5. DELEGATION OVERSIGHT

Are any of the services described in this SOW considered a “delegated” function under federal or state requirements and/or accreditation standards (National Committee for Quality Assurance (“NCQA”) or Utilization Review Accreditation Commission (“URAC”))? Delegated functions may include, but are not limited to, the following: Credentialing, Claims, Customer Service, Enrollment, Network Management, Utilization Management, Case Management, Quality Management, Disease Management, Care Coordination, Independent Review, Member Outreach, and Subrogation. If yes, the Delegation Addendum, signed between the Parties is applicable. Please check the appropriate response. Note: An authorized representative of HCSC makes this determination.

Yes - ☐

No - ☒

6. RESPONSIBILITIES

6.1. Services Vendor Responsibilities

- *Define known criteria and expectations from Services Vendor as part of this SOW*
- *These responsibilities will support the stated scope in Section 1*
- *These are not ASSUMPTIONS*

6.2. HCSC Responsibilities

- *Define known criteria and expectations from HCSC as part of this SOW*
- *These responsibilities will support the stated scope in Section 1*
- *These are not ASSUMPTIONS*

7. KEY DATES AND PROJECT PLAN

7.1. Key Dates

Services Vendor will identify the estimated start and end dates for the Project.

Project Start Date: 9.11.2023

Project End Date: 1.31.2024

7.2. Project Plan

Services Vendor will provide a project plan (Gantt chart or other means of tracking a project) associating key completion milestones to completion dates

8. DELIVERABLES

8.1. Description of Deliverables

Services Vendor will list Project Milestones, Dates, and specific Deliverable Materials to be provided under this SOW such as:

- *Weekly Status Report*
- *Analysis of Business Requirements*
- *Architecture Documents*
- *Business Strategy and Process Documents*
- *Presentation Materials*
- *Solutions Documentation*
- *Program Code*
- *Test Plan*
- *Knowledge Transfer Plan*
- *Production Rollout Implementation Approach and Plan*

These deliverables should be added to the following table:

Phase	Key Activities	Deliverables	Due Date
Phase I – Product	<i>Work in collaboration with HCSC to:</i> • <i>Drive the creation, review and approval of user stories based on product roadmap</i> • <i>Support HCSC Business Analysts in:</i> • <i>understanding the format and expected detail needed for user stories</i> • <i>monitoring and reviewing user stories the HCSC BA's write to ensure completeness</i> • <i>ensuring stories have been</i>	• <i>Use-Case Inventory</i> • <i>User Stories development and Roadmap management</i>	• <i>End of Phase</i>

Phase	Key Activities	Deliverables	Due Date
	<i>reviewed and approved by designated HCSC SME's</i> <i>Work closely with Project Leadership to ensure status, issues, roadblocks etc. are communicated</i> <i>Collaborate with UI/UX team to ensure UI designs are consistent with requirements contained within user stories</i> <i>Collaborate with IT team to ensure that requirements found in their review of code is incorporated within user stories</i>		
<i>Phase I – UI/UX</i>	<i>Work in collaboration with HCSC to:</i> <i>Update UI Style Guide and Sitemap as needed</i> <i>Create Journey Map and To-Be process flows for upcoming features</i> <i>Create Lo/Mid fidelity wireframes followed by</i>	<i>Updates to Style Guide</i> <i>Journey Map</i> <i>Hi fidelity mockups</i> <i>Road Map Updates</i>	<i>End of Phase</i>

Phase	Key Activities	Deliverables	Due Date
	<i>select hi-fidelity mockups for upcoming features</i> • <i>Continue User Research – conduct focus group discussions of upcoming features and usability testing of future state wireframes (“upcoming features” will be determined by the product roadmap)</i> • <i>Support efficient front-end development via clarifying or making adjustments to the visual design as needed (due to feasibility challenges, etc)</i> • <i>Conduct UI/UX QA testing to verify that visual components, responsiveness, and interactivity are all as expected in the developed product</i> • <i>Conduct a heuristics analysis to verify the overall usability as screens are being developed</i>		
<i>Phase 1 - Technology</i>	<i>Work in collaboration with HCSC to:</i> • <i>Implement Stories from UX and Product</i> • <i>Support Testing</i> • <i>Bug Fixes</i>	• <i>Code Delivery</i> • <i>Technology Architectural Docs</i> • <i>API Endpoint reference implementation</i>	• <i>End of Phase</i>

Phase	Key Activities	Deliverables	Due Date
	- Security and Forgerock integrations - New Java Services for front end and domain implementation - Support Product with PB code analysis and design - Begin Disaster Recovery Planning		
Phase 1- Delivery	- Communication Plan – determine metrics to measure and how best to communicate progress - Implementation Plan for MVP with details for first increment - Resource Staffing Plan for next phase - Understand the Testing Approach	- Status Report Template - Staffing Plan - Implementation Plan - Agile Cadence / Ceremonies process flow	End of Phase

8.2. Acceptance of Deliverables

The following language is required, and may not be removed:

HCSC will inform Services Vendor regarding the form of approval that will be required for any Deliverables under the SOW (i.e., email, written document, through HCSC's then-existing vendor management system, or other form).

Additional detail such as timing of the Deliverables review and approval process (i.e., Deliverables to be reviewed within XX days, etc.) to be added, as applicable.

9. FEES AND EXPENSES

9.1. Fees

For a Time and Materials project:

Services Vendor will identify all service charges associated with this SOW, including resource billing rates and estimated hours for completion of the project. Services Vendor will also list rates per consultant/title. The table below should be completed.

Role/Function	Name	Rate/Hour	# of Hours	Total
Managing Director	Jurek Dzierzanowski	\$0		
Principal	Mark Daniels	\$0		
Delivery Leadership (60%)	Adam Jones	\$235	370	\$86,950
Principal Architect	Rob Miroballi	\$215	616	\$132,440
Fellow Product Management	Ken Lubert	\$190	616	\$117,040

Role/Function	Name	Rate/Hour	# of Hours	Total
UI/UX Lead	Savina Imrhan	\$160	616	\$98,560
Technical Lead	Alex Pieprzycki	\$165	616	\$101,640
Technical Architect	Dimi Kirilov	\$185	616	\$113,960
Software Engineer	Benjamin Zenunovic	\$150	616	\$92,400
Software Developer	Kerim Kutuk	\$135	616	\$83,160
TOTAL FEES				\$826,150

This project is being billed as a Time and Materials engagement with fees not to exceed \$826,150.

9.2. Expenses

Services Vendor's travel expenses must conform to HCSC's Corporate Travel and Expense Reporting policy and will be subject to pre-approval by HCSC. Reasonable travel and expenses will be billed at cost and shall not exceed XX percent (XX%) of fees. PLEASE COMPUTE AND STATE THE ACTUAL DOLLAR FIGURE representing expected expenses for this engagement.

Expenses for this project shall not exceed \$16,000.00.

9.3. Fees and Expenses

GRAND TOTAL	
TOTAL FEES	\$ 826,150
TOTAL EXPENSES	\$16,000
TOTAL FEES AND EXPENSES	\$842,150

Total fees and expenses for this project shall not exceed \$842,150.

9.4. Invoice Schedule

Services Vendor will invoice HCSC per the following payment schedule:

The HCSC Contract Manager will monitor and review all invoice requests

from Services Vendor and ensure the Services Vendor has completed the required Deliverables before invoice submission

9.5. Additional Billing/Payment Requirements

HCSC reserves the right to make HCSC payments to Services Vendor contingent upon HCSC approval of Services Vendor's Deliverables,.

9.6. [Insert only if MSA includes a liability cap less than the total SOW spend]

Amended Liability Cap; which explicitly takes precedence over any conflicting provisions in the Agreement.

Services Vendor's total maximum aggregate liability to HCSC for damages or losses under or in connection with this SOW, whether in contract or in tort (including but not limited to for breach of warranty, negligence and strict liability), for any and all claims, will be subject to a cap in an amount equal to, as of the date of the most recent event giving rise to liability occurred, the greater of (i) [INSERT AMOUNT], or (ii) the total amount of the fees and expenses paid or payable by HCSC under or in connection with this SOW for the twenty-four (24) month period preceding the month in which such event giving rise to liability occurred. This section shall supersede Section [INSERT SECTION NUMBER] of the Agreement as it relates to this SOW.

10. HARDWARE/SOFTWARE REQUIREMENTS**10.1. Requirement Description**

- (i) Services Vendor is responsible for procuring all software and hardware that are necessary for Services Vendor to perform the Services under this SOW, unless otherwise approved by HCSC below.
 - (ii) Services Vendor shall not use any software or hardware owned by HCSC, any third-party software licensed by HCSC, or any HCSC on-line or subscription services (such as Software as a Service ("SaaS") or cloud services) (collectively referred to as "HCSC Assets"), unless specifically permitted under the applicable third-party agreements, and approved by HCSC, below.
 - (iii) Notwithstanding the foregoing, certain software, such as MS Office, antivirus software, and email, for use by Services Vendor resources under the SOW, may be approved by HCSC outside of this process of Section 10.
 - (iv) The following Subsection 10.2 applies if "Yes" is checked to the following statement; if "No" is checked, then Subsection 10.2 is not applicable:
 - (a) HCSC has approved and will provision for Services Vendor's use of HCSC Assets in connection with this SOW:
- Yes - ☐
- No - ☐

10.2. Approved Use of HCSC Assets

- (i) If Services will be performed on HCSC premises, HCSC may in its sole discretion elect to provide Services Vendor with desktop computer(s).
- (ii) HCSC shall not provide any laptop computers or tablets to Services Vendor.
- (iii) If remote access to software or hardware by Services Vendor is approved by HCSC, any such remote access will be solely through HCSC's Anyplace Virtual Desktop Infrastructure ("VDI") solution, through the use of an HCSC-approved computing device.
- (iv) If HCSC approves such remote access:
 - (a) Services Vendor shall provision for all hardware that is necessary for remote access to software.
 - (b) Services Vendor shall provide a physical Windows endpoint that Services Vendor shall use to connect to HCSC's VDI solution environment.

(v) HCSC has approved and will provision for the Services Vendor's use of the following software and hardware under this SOW:

- (a) *SW A – X number of licenses, and XX method of access*
- (b) *SW B - X number of licenses, and XX method of access*
- (c) *HW A - X number of X*
- (d) *HW B – X number of X*

(vi) Services Vendor shall use software and hardware approved for use, only in accordance with the procedures and methods of access, and timeline, identified by HCSC.

11. PROJECT CHANGE CONTROL

- (i) Any changes to this SOW must be in writing and agreed upon by all Parties.
- (ii) Changes to this SOW shall be reflected in an amendment to the SOW or in a new SOW. Any such revision shall be processed and approved through HCSC's standard SOW process. Any changes to the project described herein must be approved by the HCSC Procurement and Support Services ("PSS") department.

12. NON-SOLICITATION OF SERVICE VENDOR EMPLOYEES

During the term of this SOW and for a period of twelve (12) months after the later of the termination of the MSA or the termination of this SOW, HCSC will not, whether directly or indirectly on its own account or in conjunction with or on behalf of any other person or entity, solicit the employment or services of the employees or independent contractors of the Services Vendor in any capacity, to the extent such individuals were introduced to HCSC as a result of the Services or to the extent such individuals provided Services pursuant to this SOW. Provided that this provision shall not apply to individuals who independently respond to indirect solicitations (such as general newspaper advertisements, employment agency referrals, general searches conducted by third party recruiters on behalf of HCSC (provided HCSC did not direct the recruiter to contact such employee) and internet postings) not targeting such individuals.

IN WITNESS WHEREOF, HCSC and Services Vendor have caused their authorized representatives to sign this SOW.

HEALTH CARE SERVICE CORPORATION,

**a Mutual Legal Reserve Company
("HCSC")**

DocuSigned by:

Karl Baltes

9A9D94A2458D4B8...

(Signature)

Karl Baltes

(Printed Name)

Divisional Tech Officer

(Title)

9/22/2023

(Date)

**Midland Business Systems Inc. dba Nvisia
LLC**

DocuSigned by:

Shaun Lovick

B8BD0F74D5C64BB...

(Signature)

Shaun Lovick

(Printed Name)

President

(Title)

9/22/2023

(Date)

DS
GU

DS
FD

DS
SKH

DS
Das

Electronic Record and Signature Disclosure

DocuSign®

Certificate of Completion

Envelope Id: 692F49065921403A8F9208405079BE4D

Status: Completed

Subject: DocuSign: Midland - Nvisia LLC - ExA-SOW BlueStar PowerBuilder Remediation (Contract ZY24513)

Source Envelope:

Document Pages: 21

Signatures: 6

Envelope Originator:

Certificate Pages: 6

Initials: 10

Nashaat Hana

AutoNav: Enabled

300 E. Randolph St.

Envelopeld Stamping: Enabled

Chicago, IL 60601

Time Zone: (UTC-06:00) Central Time (US & Canada)

Nashaat_Hana@bcbsil.com

IP Address: 10.78.42.6

Record Tracking

Status: Original

Holder: Nashaat Hana

Location: DocuSign

9/20/2023 11:42:57 AM

Nashaat_Hana@bcbsil.com

Signer Events

Jamie Umlor

jamie_umlor@bcbsil.com

Health Care Service Corporation

Security Level: Email, Account Authentication
(None)

Signature

DocuSigned by:

98CF9109F6544E9...

Signature Adoption: Pre-selected Style
Using IP Address: 172.29.157.72

Timestamp

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Signed: 9/21/2023 10:09:16 AM

Electronic Record and Signature Disclosure:
Not Offered via DocuSign

Flavia Duffy

flavia_duffy@bcbsil.com

VP Operations

Security Level: Email, Account Authentication
(None)

DS


Signature Adoption: Pre-selected Style
Using IP Address: 10.78.25.196

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Viewed: 9/22/2023 11:35:06 AM

Signed: 9/22/2023 11:35:40 AM

Electronic Record and Signature Disclosure:
Not Offered via DocuSign

Shaun Lovick

shaunl@nvisia.com

President

Security Level: Email, Account Authentication
(None)

DocuSigned by:

B8BD0F74D5C64BB...

Signature Adoption: Pre-selected Style
Using IP Address: 73.73.110.234
Signed using mobile

Sent: 9/22/2023 11:35:44 AM

Viewed: 9/22/2023 11:44:20 AM

Signed: 9/22/2023 11:44:54 AM

Electronic Record and Signature Disclosure:
Accepted: 9/22/2023 11:44:20 AM
ID: 74dc8cf3-5f8f-440f-80dd-0c384c16720f

Karl Baltes

karl_baltes@bcbsil.com

Divisional Tech Officer

kb

Security Level: Email, Account Authentication
(None)

DocuSigned by:

9A9D94A2458D4B8...

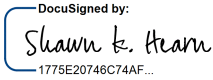
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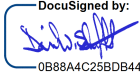
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Signed: 9/22/2023 12:46:28 PM

Electronic Record and Signature Disclosure:
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ID: 2171b738-d37b-4a2f-9d6b-4dd4d95c0aa4

Signer Events	Signature	Timestamp
Shawn K. Hearn shawn_hearn@bcbsil.com Sr. Mgr.PSS Health Care Service Corporation Security Level: Email, Account Authentication (None)	DocuSigned by:  1775E20746C74AF... Signature Adoption: Pre-selected Style Using IP Address: 10.78.39.197	Sent: 9/22/2023 12:46:31 PM Viewed: 9/26/2023 8:40:39 AM Signed: 9/26/2023 4:30:34 PM

Electronic Record and Signature Disclosure:
Not Offered via DocuSign

Daniel Schuffert daniel_schuffert@bcbsil.com Strategic Sourcing DVP Health Care Service Corporation Security Level: Email, Account Authentication (None)	DocuSigned by:  0B88A4C25BD844E... Signature Adoption: Uploaded Signature Image Using IP Address: 24.151.126.248 Signed using mobile	Sent: 9/26/2023 4:30:37 PM Viewed: 9/26/2023 6:10:00 PM Signed: 9/26/2023 6:10:20 PM
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Electronic Record and Signature Disclosure:
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In Person Signer Events	Signature	Timestamp
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Editor Delivery Events	Status	Timestamp
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Agent Delivery Events	Status	Timestamp
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Intermediary Delivery Events	Status	Timestamp
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Certified Delivery Events	Status	Timestamp
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Brad McCarter Brad_McCarter@bcbsil.com Sr. IT Product Manager Security Level: Email, Account Authentication (None)	VIEWED Using IP Address: 172.29.159.40	Sent: 9/26/2023 6:10:27 PM Viewed: 9/26/2023 6:42:15 PM
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Carbon Copy Events	Status	Timestamp
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Mark Daniels mdaniels@nvisia.com Security Level: Email, Account Authentication (None)	COPIED	Sent: 9/22/2023 11:35:44 AM Viewed: 9/22/2023 11:39:31 AM
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Electronic Record and Signature Disclosure:
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Electronic Record and Signature Disclosure:
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ITAM ITAMServiceRequest@bcbsil.com Security Level: Email, Account Authentication (None)	COPIED	Sent: 9/26/2023 6:10:26 PM
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Electronic Record and Signature Disclosure:

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Notary Events	Signature	Timestamp
Envelope Summary Events	Status	Timestamps
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Envelope Updated	Security Checked	9/21/2023 9:57:44 AM
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Envelope Updated	Security Checked	9/21/2023 10:03:05 AM
Certified Delivered	Security Checked	9/26/2023 6:42:15 PM
Signing Complete	Security Checked	9/26/2023 6:10:20 PM
Completed	Security Checked	9/26/2023 6:42:15 PM
Payment Events	Status	Timestamps
Electronic Record and Signature Disclosure		

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Required hardware and software

Operating Systems:	Windows2000↵ or WindowsXP↵
Browsers (for SENDERS):	Internet Explorer 6.0↵ or above
Browsers (for SIGNERS):	Internet Explorer 6.0↵, Mozilla FireFox 1.0, NetScape 7.2 (or above)
Email:	Access to a valid email account
Screen Resolution:	800 x 600 minimum
Enabled Security Settings:	ò Allow per session cookies ò Users accessing the internet behind a Proxy Server must enable HTTP 1.1 settings via proxy connection

** These minimum requirements are subject to change. If these requirements change, we will provide you with an email message at the email address we have on file for you at that time providing you with the revised hardware and software requirements, at which time you will have the right to withdraw your consent.

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